

26STCV00896 26STCV00896

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Case Number: 26STCV00896 Hearing Date: July 7, 2026 Dept: 224

Estrada et al., v. Rodriguez et al.,

TENTATIVE RULING

The Demurrer is sustained with 20 days leave to amend. A CMC is Set for September 20, 2026 at 8:30 a.m.

ANALYSIS

Plaintiffs filed an Amended Complaint on May 29, 2026.

Defendants filed the instant Demurrer to the First Amended Complaint on June 12, 2026.

On June 22, 2026, Plaintiff filed an Opposition.

On June 24, 2026, Defendant filed a Reply.

Request for Judicial Notice

Defendants' request for judicial notice is GRANTED.

Discussion

Plaintiffs Josefina Estrada and Angelina Estrada, as Co-Trustees of the Ramiro C. Iniguez Trust, seek possession of the subject property from Defendants Lucero Rodriguez and Fernando Rodriguez. Plaintiffs allege Defendants resided at the property with Ramiro C. Iniguez. It is undisputed that Mr. Iniguez is not a party to this action.

According to the First Amended Complaint ("FAC"), Plaintiffs served Defendants with a 30-Day Notice to Quit on June 13, 2024, and allege Defendants' right to possession terminated 30 days later. (FAC ¶¶ 2, 4.) Mr. Iniguez subsequently died on January 31, 2026. (Id.) The Court notes that the FAC is substantially identical to a complaint Plaintiffs filed in 2024, except that Plaintiffs now allege the property was exempt from the City of Los Angeles Just Cause for Eviction Ordinance ("JCEO"),

Los Angeles Ordinance No. 187737, because Mr. Iniguez resided at the property with Defendants.

Defendants Demurrer on grounds that the FAC fails to allege that Defendants are being evicted on any ground authorized by the JCEO.

The JCEO applies once a tenant has continuously occupied residential property for six months or the initial lease term has expired, whichever occurs first. (LAMC § 165.04.) When the ordinance applies, "[a] landlord shall not terminate a tenancy unless it is based upon" one of the fourteen enumerated grounds set forth in LAMC section 165.03(A). Termination of a tenancy under Civil Code section 789 is not among those permissible grounds. Moreover, noncompliance with the JCEO may be asserted as an affirmative defense in an unlawful detainer action. (LAMC § 165.07.)

The FAC alleges the property is located within the City of Los Angeles and that Defendants have resided there since 2019—well beyond the six-month threshold. Accordingly, the JCEO applies unless Plaintiffs establish a statutory exemption.

The FAC's allegations establish that Plaintiffs are "landlords" and Defendants are "tenants" within the meaning of the ordinance. The JCEO defines a "landlord" as "[a]n owner, lessor, or sublessor... who is entitled to... maintain an action for possession of residential real property, or the agent, representative or successor of any of the foregoing," and defines a "tenant" as "[a] tenant, subtenant, lessee, sublessee or any other person entitled to use or occupancy of residential real property." (LAMC § 165.02.) These definitions encompass the parties alleged in the FAC. (See *Roxbury Lane LP v. Harris* (2023) 88 Cal.App.5th Supp. 9, 15 [holding that a tenancy at will is "presumably" covered by the materially identical definition of "tenant" contained in the Los Angeles Rent Stabilization Ordinance].)

Plaintiffs contend the property falls within the owner-occupancy exemption set forth in LAMC section 165.04(E), which exempts "[h]ousing accommodations in which the tenant shares bathroom or kitchen facilities with the owner who maintains their principal residence at the residential real property."

That argument is not supported by the FAC. Plaintiffs are the only owners identified in the pleading. They allege they are the Co-Trustees of the Ramiro C. Iniguez Trust, which owned the property, and they do not—and cannot—allege that they shared bathroom or kitchen facilities with Defendants or maintained their principal residence at the property.

Plaintiffs instead argue the exemption applies because Mr. Iniguez resided at the property when the 30-Day Notice to Quit was served. That contention is inconsistent with both the FAC and the notice itself. The Notice to Quit is signed by "Josefina Estrada and Angelina Estrada, as Co-Trustees of the Ramiro C. Iniguez Trust," not by Mr. Iniguez individually, or by them alleging he is the owner and they are his agents. (FAC, Ex. 1; FAC ¶ 4.) The FAC likewise alleges the Trust—not Mr. Iniguez—owned the property. Under Plaintiffs' own allegations, Mr. Iniguez was an occupant of the property, not the owner identified as the landlord for purposes of the eviction.

Because the FAC alleges the property is subject to the JCEO and does not plead that Defendants are being evicted for any of the fourteen permissible grounds enumerated in LAMC section 165.03(A), it fails to state a cause of action for unlawful detainer.

Leave to amend is granted only if Plaintiffs can truthfully allege facts establishing that Mr. Iniguez, rather than the Trust acting through its co-trustees, was the owner of the property for purposes of the owner-occupancy exemption in LAMC section 165.04(E). As presently pleaded, neither the FAC nor the attached Notice to Quit identifies Mr. Iniguez as the owner or landlord.

Any amendments have to include, and be consistent with, the recorded title and governing trust documents, if applicable.

Conclusion

The Demurrer is sustained with 20 days leave to amend. A CMC is Set for September 20, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.